

Criminal Law, Investigation and Procedure Victoria
Trial Procedure
Evidence
Evidence Act 2008 (Annotated)
Chapter 3 – Admissibility of Evidence (ss 55–139)
Part 3.8 – Character (ss 109–112)
Evidence about character of an accused
Last Review: 30/01/2025

110 Evidence about character of an accused

Legislation

- (1) The hearsay rule, the opinion rule, the tendency rule and the credibility rule do not apply to evidence adduced by an accused to prove (directly or by implication) that the accused is, either generally or in a particular respect, a person of good character.

History Note

[Subs (1) am Act 68 of 2009, s 97 and Sch item 55.29]

- (2) If evidence adduced to prove (directly or by implication) that an accused is generally a person of good character has been admitted, the hearsay rule, the opinion rule, the tendency rule and the credibility rule do not apply to evidence adduced to prove (directly or by implication) that the accused is not generally a person of good character.

History Note

[Subs (2) am Act 68 of 2009, s 97 and Sch item 55.29]

- (3) If evidence adduced to prove (directly or by implication) that an accused is a person of good character in a particular respect has been admitted, the hearsay rule, the opinion rule, the tendency rule and the credibility rule do not apply to evidence adduced to prove (directly or by implication) that the accused is not a person of good character in that respect.

History Note

[Subs (3) am Act 68 of 2009, s 97 and Sch item 55.29]

Note: The Commonwealth Act previously included an additional subsection relating to unsworn statements.

History Note

[S 110 am Act 68 of 2009, s 97 and Sch item 55.28]

View [s 110 of the Evidence Act 2008 \(Vic\)](#) within the legislation collection.

SECTION 110 COMMENTARY

[EA.110.20] Good character evidence by accused

As at common law, under the Act the accused is the only person who can introduce evidence of good character. Pursuant to [s 110 of the Evidence Act 2008](#), the accused can lead evidence of good character through his or her own testimony or that of others. However, if such evidence is admitted the prosecution can lead rebuttal evidence to establish that the accused is not of good character. This is generally limited to the trait upon which the good character evidence was led. Unlike the situation at common law, character is “divisible” under the Act. In *Saw Wah v The Queen* [2014] VSCA 7, it was held that evidence of road traffic convictions cannot be used as a basis for debunking good character evidence against an accused charged with sex offences.

The approach to good character evidence in relation to the accused is set out in *R v Zurita* [2002] NSWCCA 22, at [14]–[15], as follows:

It is clear that the effect of [s 110\(1\)](#) was to vary the common law attitude to character, which was, as the trial judge expressed it, “all or nothing”. The section permits an accused person to put forward that he or she is “either generally or in a particular respect” a person of good character. Defence counsel was seeking a ruling as to the consequence of the appellant raising his character either generally or in a particular respect, that being that he was not known to the police in respect of child sexual assault offences.

The course adopted by defence counsel finds support in the judgment of this court in *R v PKS* (unreported, NSWCCA, No 60174 of 1998, 1 October 1998). In that case, unlike the present, the issue of the accused's character was raised at the conclusion of the Crown case. In the context of the circumstances in that case, this court indicated what is needed to be done in connection with the issue of good character in the following series of propositions (pp 8–10):

1. The first thing that had to be decided by the accused and his legal representatives was whether, his good character not having been put in issue in the Crown case, it should be raised as an issue in his own case.
2. That decision needed to be taken in the light of the provisions of [Pt 3.8 of the Evidence Act 1995 \(NSW\)](#), and in particular the provisions of [ss 110 and 112](#) of that Act.
3. [Section 110\(1\)](#) gave the accused a clear choice. He could put in issue the proposition that he was “generally a person of good character”. Alternatively, he could put in issue the proposition that he was “in a particular respect a person of good character”.
4. In the event that he decided to put in issue that he was “generally a person of good character”, the accused was vulnerable to an application by the Crown, and made pursuant to s 112 of the *Evidence Act 1995*, to cross-examine him so as to elicit that he had, in fact, prior convictions, albeit old ones, for offences of dishonesty.
5. If he decided to put in issue that he was “in a particular respect a person of good character”, namely in respect of sexual misconduct with young children, whether his own children or the children of others, then the accused was not so vulnerable to cross-examination upon his old convictions for dishonesty. That was so because of the terms of s 110(3) of the *Evidence Act 1995*. Such a construction of s 110(3) was adopted by Higgins J, of the Federal Court of Australia, in [Gabriel v The Queen \(1997\) 76 FCR 279](#).

When good character evidence on behalf of the accused is admitted, it goes to his credibility and also to the likelihood of committing the offence. In order for good character evidence to be adduced by an accused it is necessary for this to be done deliberately.¹

In [Bishop v The Queen \[2013\] VSCA 273](#), the court emphasised that the nature of the good character evidence which can be given pursuant to s 110 extends beyond that at common law where such evidence was confined to reputation. It extends to evidence of particular acts which are suggestive of good character. Where good character evidence is given it is inappropriate for a

judge to inform the jury that evidence should carry less weight because the charged offences are of the type that are normally committed in secrecy. The court stated:²

... Evidence of good character must not be diminished in value because the offences are of a type generally committed in circumstances of secrecy. The same could be said for most offences of dishonesty. No direction should invite the jury to doubt the worth of the offender's previous good character in the absence of evidence that justifies such reasoning.

Bishop [2013] VSCA 273 was applied in *Director of Public Prosecutions v Newman* [2015] VSCA 25, where the court emphasised that (at [35]):

... s 110 of the *Evidence Act 2008* permits evidence to be adduced that the accused is, either generally or in a particular respect, a person of good character; and that, where the accused elects to lead only evidence of good character in a particular respect, the prosecution will be confined to rebutting evidence in that particular respect.

In *Huges v Director of Public Prosecutions* (2013) 238 A Crim R 345; [2013] VSCA 338, Priest JA adopted the test in *R v Thomas* [2006] VSCA 167³ as determining whether good character has been put. The test is set out as follows:⁴

- (a) The test for determining whether the good character of the accused has been put in issue, is not whether a reasonable jury would think that this is the case, but whether the judge is of the opinion that it does so;
- (b) counsel's purpose in leading the evidence is relevant, but is not determinative;
- (c) the policy basis for allowing admission of evidence of bad character, where the accused has put his or her character in issue, is to ensure fairness to the prosecution by permitting that evidence to be rebutted;
- (d) at common law the fact that the accused has attacked the character of a prosecution witness does not, without more, expose him or her to admission of evidence of bad character; and
- (e) where the threshold requirement for the admission of evidence of bad character is satisfied, the court has a discretion to exclude it.

In *De Silva v Director of Public Prosecutions*⁵, a defence appeal against conviction was permitted on the basis that the accused's good character was not led at trial. A different conclusion was reached in *Parsons v The Queen* [2016] VSCA 17⁶ because the court held that the failure to lead good character evidence may have been in order to obtain a forensic advantage at trial.

In *R v AKB (No 7)* [2018] NSWSC 1120,⁷ the court held that if an accused provides evidence that he or she has no prior convictions, that rebuttal evidence on character can only relate to whether the accused has prior convictions and hence cannot be concerned with the accused's general character. This approach was not followed in *R v Wiggins (No 7)* [2022] NSWSC 1249;⁸ a case in which the accused sought to tender evidence that he had no prior convictions for four types of offences and submitted that the Crown should not be permitted to tender evidence in rebuttal. The Court at [79] to [82] stated:

[Earlier decisions] concern character being raised in one respect, being the respect pertinent to the charge(s) the subject of trial. That is consistent with the effect of s 110(3) of the *Evidence Act* which is to provide an accused with the opportunity to raise his good character "in a particular respect". It is to be accepted that as a matter of statutory construction, unless a contrary intention is apparent, a word or expression in the singular form includes a reference to the word or expression in the plural form: s 8(b) *Interpretation Act 1987 (NSW)*. But it seems to me that such a contrary intention arises in s 110(3). The concept of character being divisible contemplates a discrete aspect of a person's character being raised as opposed to one's character generally. To put this another way and accepting that it will always be a question of degree, raising one's character in more than one "particular respect" is potentially tantamount to raising one's good character generally.

I am unaware of any authority for the proposition that character can be divided into multiple subcategories, all of which can be adduced at trial, whether or not directly relevant to the charged offence and despite evidence of the accused's "bad" character, including a criminal history.

It is to be accepted that if a person was on trial for two different offences, such as a drugs offence and a larceny offence, an absence of convictions or other evidence of bad character might be raised in those two respects and the Crown would be confined to rebutting those two discrete respects.

However, in the present matter, the accused seeks to raise character in four respects by adducing evidence he does not have convictions in those four areas and contending the Crown is otherwise unable to rebut that evidence. It seems to me that, although each case is to be determined on its facts, there are significant problems in raising character in multiple respects in this way. One concern is that if character is raised in the form of not having convictions for crimes A, B and C (as opposed to not having any convictions at all) there is a risk that the jury will speculate as to what convictions the accused does have. This is consistent with what Howie J observed in *Gallant v R* ...

In *Schmidt v The King* [2024] VSCA 256 convictions for sexual offences were overturned when it was that the trial judge made a mistake in not permitting a witness to give evidence that that accused is a person who behaves respectfully towards women, even when affected by alcohol. In *Wallace v R* [2024] NSWCCA 176 a conviction was overturned because the judge failed to give a good character direction.

No particular form of directions to the jury are necessary when good character evidence is adduced: *FB v The Queen* [2020] NSWCCA 137.⁹

The tendency rule does not apply to evidence adduced to establish that an accused is not of good character: *Croft v The Queen* [2021] NSWCCA 146.¹⁰ See also Odgers S, *Uniform Evidence Law* (Thomson Reuters, subscription service) at [EA.110.30] ff.

In *Clegg v The Queen* [2017] NSWCCA 125,¹¹ it was held that the tendency rule does not apply in relation to evidence tendered to rebut good character evidence.

Footnotes

- 1 *R v Skaf* [2004] NSWCCA 74, but see *PGM v The Queen* (2006) 164 A Crim R 426; [2006] NSWCCA 310.
- 2 *Bishop v The Queen* [2013] VSCA 273 at [11].
- 3 *R v Thomas* [2006] VSCA 167.
- 4 *Huges v Director of Public Prosecutions* (2013) 238 A Crim R 345; [2013] VSCA 338 at [25].
- 5 *De Silva v Director of Public Prosecutions* [2013] VSCA 339.
- 6 *Parsons v The Queen* [2016] VSCA 17.
- 7 *R v AKB (No 7)* [2018] NSWSC 1120.
- 8 *R v Wiggins (No 7)* [2022] NSWSC 1249.
- 9 *FB v The Queen* [2020] NSWCCA 137.
- 10 *Croft v The Queen* [2021] NSWCCA 146.
- 11 *Clegg v The Queen* [2017] NSWCCA 125.